

Before the
FEDERAL MARITIME COMMISSION
Washington, D.C. 20573
Docket No. 23-02
BED BATH & BEYOND INC. v.
ORIENT OVERSEAS CONTAINER LINE LIMITED AND OOCL (EUROPE) LIMITED

DECLARATION OF DAVID M. KASTIN

I, David M. Kastin, declare as follows:

1. Since October 2023, I have served as an independent consultant to the bankruptcy plan administrator to Complainant 20230930-DK-Butterfly-1, Inc., formerly known as Bed Bath & Beyond Inc. (“Complainant”).
2. I submit this Declaration in support of Complainant’s (1) Motion for Permission to File Proposed Verified Second Amended Complaint Against Respondents (the “Motion to Amend”) and (2) Motion to File Under Seal Complainant’s Proposed Verified Second Amended Complaint (the “Motion to Seal” and, together with the Motion to Amend, the “Motions”), filed contemporaneously herewith.
3. I graduated from Benjamin N. Cardozo School of Law with a Juris Doctorate in 1992.
4. Since January 1993, I have been a duly licensed attorney under the laws of the States of New Jersey and New York and am currently a member in good standing of the respective bars of those same States.

5. I joined the entity formerly known as Bed Bath & Beyond Inc. (“BBBY”) as Chief Legal Officer in December 2022. Prior to becoming Chief Legal Officer of BBBY, I did not hold any positions at BBBY.

6. Following BBBY’s dissolution as part of its entry into Chapter 7 bankruptcy in September 2023, I became an independent consultant to Complainant’s bankruptcy plan administrator. In such capacity, my duties are to provide legal advice to Complainant’s bankruptcy plan administrator in connection with the winddown of Complainant’s estate.

7. I understand that the allegations in Complainant’s original Verified Complaint were verified by a then-current employee of BBBY, Mr. Ian Pinchuk, whom counsel for Respondents deposed on August 9, 2024.

8. I was deposed by counsel for Respondents on October 15, 2024.

9. In my capacity as an independent consultant to Complainant’s bankruptcy plan administrator and authorized signatory of Complainant, I signed and submitted the verification, dated July 3, 2024 (“1AC Verification”) to Complainant’s First Amended Complaint (“1AC”), which I understand was approved and filed pursuant to an order, dated August 23, 2024, by the presiding Administrative Law Judge in this case.

10. As part of my review in connection with the 1AC Verification, I determined that all changes from the original Verified Complaint to the 1AC were based on discovery produced in this action, which discovery material is expressly identified in footnotes to the 1AC for ease of reference. As I explained during my deposition, the discovery material relied on in the 1AC was provided to me by Huth Reynolds LLP, the law firm that serves as counsel to Complainant in this case, which I reviewed in verifying the 1AC.

11. In my capacity as an independent consultant to Complainant's bankruptcy plan administrator and authorized signatory of Complainant, I signed and submitted the verification, dated November 15, 2024 ("2AC Verification") to Complainant's Proposed Second Amended Complaint ("2AC"), which I understand is being filed contemporaneously herewith in connection with Complainant's Motions.

12. In verifying the changes made in the 2AC, I reviewed discovery material produced in this action, including relevant portions of the Expert Report of John D. McCown and appendices thereto, dated September 17, 2024, and determined that all changes from the original Verified Complaint to the 2AC were based on discovery produced in this action, which material was provided to me by Huth Reynolds LLP.

[Signature page follows]

13. To the best of my knowledge, information, and belief, I declare under penalty of perjury that the foregoing is true and correct.

Executed on November 15, 2024.



David M. Kastin

Certificate of Service

I hereby certify that I have this day served the foregoing document upon Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited by emailing copies of the document to their counsel of record listed below:

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Counsel for Respondents Orient Overseas Container Line Limited and OOCL (Europe) Limited

Dated: November 15, 2024

A handwritten signature in black ink, appearing to read "Lee Hill", written over a horizontal line.

J. Lee Hill

*For Complainant 20230930-DK-Butterfly-1,
Inc., formerly known as Bed Bath & Beyond Inc.*